

Amendment No. 1 to SB1877

Watson
Signature of Sponsor

AMEND Senate Bill No. 1877

House Bill No. 1641*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 65-13-103(14), is amended by deleting subdivisions (C) and (D) and substituting:

(C) A public utility, as defined in § 65-4-101, that provides utility service;

(D) A cooperative, as defined in § 65-25-102; or

(E) A rail carrier, as defined in 49 U.S.C. § 10102, engaged in the transportation of passengers or property for hire and operating within this state; and

SECTION 2. Tennessee Code Annotated, Title 65, Chapter 13, Part 7, is amended by adding the following as a new section:

65-13-710. Authority's purview regarding utilities that are rail carriers.

(a) In exercising its authority under this chapter, the authority:

(1) Shall not:

(A) Issue an order that regulates rail transportation or unreasonably interferes with the rail operations of a rail carrier; or

(B) Compel a rail carrier to permit the construction, operation, or maintenance of a transit project within the right-of-way of a rail carrier if doing so would be preempted by federal law; and

(2) May:

(A) Determine whether the construction, operation, or maintenance of a transit project would:

(i) Unreasonably interfere with or interrupt the rail operations of, or rail transportation by, a rail carrier; or

(ii) Create a railroad safety or security concern with the rail operations of, or rail transportation by, a rail carrier; and

(B) Authorize the subsurface construction, operation, and maintenance of a transit project that does not result in a condition specified in subdivision (a)(2)(A)(i) or (ii).

(b) If any provision of this section or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of this chapter that can be given effect without the invalid provision or application, and to that end, the provisions of this section are severable.

SECTION 3. Tennessee Code Annotated, Section 55-31-104(a)(2), is amended by deleting the subdivision and substituting the following:

(2) The department of revenue shall implement the motor vehicle portal required under subdivision (a)(1) no later than December 31, 2027.

SECTION 4. Tennessee Code Annotated, Section 55-31-104(b), is amended by deleting the subsection and substituting the following:

(b) The department shall charge a fee to users of the portal for entering information or sending notification through the portal, but a fee must not be charged for conducting a public search on the motor vehicle portal. The fee must be the cost per transaction charged by the department's vendor as established by a contract that was initially obtained through competitive procurement under title 12, chapter 3.

SECTION 5. Tennessee Code Annotated, Section 55-31-104(c)(7), is amended by deleting the subdivision and substituting instead the following:

(7) Send notices via standard mail to the last known registered owner of a motor vehicle and all lienholders of record that a vehicle has been taken into custody;

SECTION 6. Sections 1 and 2 take effect July 1, 2026, at 12:01 a.m., the public welfare requiring it. The remaining sections of this act take effect upon becoming a law, the public welfare requiring it.